

**IN THE MATTER OF THE WILLIE J. BURNS & JULIE P. BURNS TRUST
FPR051670**

Notice of Motion and Motion to Vacate Order; Memorandum of Points and Authorities;
Declaration of Rhonda Lofton in Support of Motion to Vacate Order Under Code of Civil
Procedure Sections 473(b) and 473(d)

Opposition to Rhonda Lofton's Motion to Vacate Order

Rhonda Lofton's Reply to Trustee's Opposition to Motion to Vacate

Petition to Compel Accounting Prob. Code 10950, Subd. (a) Prob C 16062

Objection to Petition to Compel Accounting and Request for Sanctions

PREGRANT ORDER

Counsel and parties may appear via Zoom, in person, or by CourtCall.

The court notes that the damages petition was filed July 15, 2024 and the moving party, Rhonda Lofton, never filed an opposition despite being given more than ample time to respond. The court further notes that Ms. Lofton was represented by no less than 6 attorneys over the course of this litigation, not including her current counsel. Ms. Lofton failed to file opposition to the petition for damages despite being given months, even years, to do so, and she acted in bad faith throughout the litigation, including refusing to respond fully to discovery. She has been sanctioned more than once for her litigious behavior over the course of this litigation. Ms. Lofton was allowed to attend and participate in the hearing for damages, but declined to do so.

The court denies the motion to vacate the order for damages.

As to the Petition to Compel Accounting:

The court on its own motion continues this hearing to August 27, 2026, at 9:30 a.m. in Department 22. Pending the re-set hearing Rhonda Lofton shall resolve the following issues with her petition:

1. The Proof of Service is signed by the moving party which is not correct. The moving party is reminded that documents are to be served by a person who is not a party to the action. (Civ. Proc. §§ 1012; 1013a.)
2. The petition cites to Probate Code sections that govern estates and accountings, but this is a trust matter and is governed by different Probate Code sections. The moving party shall explain.